STUDYGUIDE · PREPARATIONFORTESTSANDEXAMS

History Uzbekistan

Weeks 5–6

All questions, tests, and terms from the course articles of weeks 5–6 and the textbook ”The Newest History of Uzbekistan” (2024) — with model answers, complete translation and key terminology for each week.

Compiled for students of Tashkent University of Technology Course History of Uzbekistan · CC-MOHU010106 · Fall semester 2026

Module Coordinator — Dr Vohid Kholov QUESTIONS · TASKS · TESTS · TERMSOCTOBER2026

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1 1. Course map, sources, and how to use this manual

History of Uzbekistan, code CC-MOHU010106, Tashkent University of Technology, Faculty of Energy. Compulsory module, 4 ECTS, Fall semester 2026/2027; coordinator — Dr Vohid Kholov. Workload: 30 contact hours of lectures (2 hours per week, 15 weeks) + 90 hours of independent work = 120 hours. Assessment: midterm exam — written, 1–2 hours, 30% (ILO 1-5); project presentation — written and oral, 10–15 minutes, 20%; final exam — written, 1–2 hours, 50%. Grading scale: $90-100 = A$ (excellent), $75-89 = B$(good), $60-74 = C$(satisfactory), $0-59 = D$(unsatisfactory); a minimum of 75% attendance is required to be admitted to the final exam.

Intended Learning Outcomes (ILO): (1) Understanding — explain basic concepts of history, statehood, and the role of science and technology in the country's development; (2) Analysis — analyze contemporary Uzbek politics in retrospect; (3) Selection — select qualitative and quantitative data and methods (Orientalism, oral history, source analysis, hermeneutics); (4) Evaluation — judge political changes and reforms: openness and transparency, multi-vector foreign policy, socially-oriented policy; (5) Application — work in small groups on projects and present historical processes in writing and orally.

This manual covers weeks 5–6 — two thematic blocks: "National Legislation and Judicial Systems" (creation of the 1992 Constitution, history of criminal courts from the Avesta to the 20th century, the judicial system of the Uzbek SSR in 1939–1945, four stages of legal system development) and "Human Rights and Elimination of Forced Labor" (ILO conventions No. 29 and No. 105, national labor legislation, institutional mechanisms, child labor in the cotton industry). Sources — 6 scientific articles of the course; all facts, dates, and figures are taken from them verbatim, quotes are given in Russian translation with authors indicated.

How to use the manual: (1) start with the "Key Points" section of each week — this is the "all rules" of the week in a condensed form; (2) solve the open questions (savollar) aloud, covering the answers, and check against the model answers; (3) take the tests (testlar); (4) learn the glossary atamalar — terms appear in definition questions and in tests; (5) before the exam, review the table of dates and numbers from chapter 5 "Cheat Sheet".

1.1 1.1. Weeks 5–6 and course files

Each week of the course corresponds to a set of articles in the folder course-content/history; all of them have been processed in this manual:

Week	Topic	Course Files
5	National Legislation and Judicial Systems	Buron — History of the Creation of the Constitution of the Republic of Uzbekistan $(ARES, 2024)$· Yusupjanova — History of the Development of Functions of Criminal Courts in Uzbekistan $(WBML, 2024)$· Komilov — The Judicial System of Uzbekistan during the Second World War $(WBSS, 2021)$· Azizov — Development of the Legal System of Uzbekistan: Priorities and Stages (JournalNX, 2021)

Week	Topic	Course Files
6	Human Rights and Elimination of Forced Labor	Sulaimanov, Rasulov — Abolition of Forced Labor: The Case of Uzbekistan (Turkish Journal of Computer and Mathematics Education, 2021)· Bhat — Forced Child Labor in the Cotton Industry of Uzbekistan (International Journal on World Peace, 2013)

Weeks 5–6 and course files

All six articles are scientific publications from 2013–2024; the formulations of questions, tests, and terms are based on the texts of

the articles, model answers are compiled from these same articles.

2 2. Week 5 — National Legislation and Judicial Systems

Week files: history-of-the-creation-of-the-constitution-of-the-republic-of-uzbekistan (Sh. Buron)· pcadmin_163 (G. Yusupjanova —

criminal courts)· pcadmin_28 (D. Komilov — courts during the Great Patriotic War)· pcadmmin_39 (N. Azizov — legal system)

Week 5 addresses the questions: how the first Constitution of independent Uzbekistan (1992) was created and what it established; how criminal courts developed in the territory of the country—from the ”Avesta” and khanates through Turkestan and the Soviet system to the present day; how the judicial system of the Uzbek SSR functioned in 1939–1945 and what four stages the legal system of the independent state has gone through. Below are the key provisions, questions (savollar), tests (testlar), and terms (atamalar) for the four articles of the week.

2.1 2.1. Key provisions (”all the rules” of the week)

Creation of the Constitution: commission, world experience and concepts

The idea of a new Constitution was born together with the Declaration of Independence of June 20, 1990: the session of the Supreme Council that adopted it decided to develop a constitution and created a Constitutional Commission of 64 people headed by the first President I. A. Karimov (on July 2–3, 1992, the composition was updated to 71 members). The meeting of April 12, 1991, launched direct work: a working group of 32 people and 6 small groups with the participation of 50 researchers were formed—on the preamble, foundations of the constitutional system, rights and obligations of citizens, society and the individual, state structure, state power, and final provisions. Constitutions of the USA, Germany, France, Turkey, Japan, Lithuania and other countries, as well as draft constitutions of seven CIS republics, were studied in depth. Of the three alternative concepts, the concept of the President’s rule of law (article by Sh. Buronov) was adopted as the basis.

Versions of the draft: from 158 articles to 127

The first version was ready by October–November 1991—158 articles, six sections; the most important impulse was the constitutional law ”On the Foundations of State Independence” of August 31, 1991. In the spring of 1992, a second version of 149 articles appeared, followed by a third—of 137; for nationwide discussion, a text of 127 articles was published. The draft was initially compiled in Russian, and in July–August 1992 it was translated into Uzbek. Each version was read personally and

corrected by hand by the chairman of the commission: ”The President... read the draft again and again, carefully followed the text and made corrections to it,” recalled Academician Sh. Z. Orazaev (article by Sh. Buronov).

Nationwide discussion in two stages

September 5, 1992, the Constitutional Commission comprehensively discussed the draft, and on September 26 it was published in the press. The discussion—from late September to early December 1992—took place in newspapers, on radio and television, in collectives and student classrooms; letters were sent by scientists and pensioners, workers and dehkans, military and religious figures. More than 6,000 proposals and comments were received, the commission alone received more than a thousand letters; corrections were made to 60 of the 127 articles, 4 articles were excluded, several new ones were added. On November 21, 1992, the draft was published a second time—a legal precedent of a two-stage nationwide discussion was created. The author calls the adopted Basic Law a truly ”people’s law” (article by Sh. Buronov).

Adoption of the Constitution on December 8, 1992 and its key norms

December 8, 1992, the eleventh session of the Supreme Council adopted the Constitution—the Basic Law of the Republic of Uzbekistan, which legally formalized the new sovereign democratic state. Deputies made about 80 changes and clarifications: the term of office of the Constitutional, Supreme, and Higher Economic

Courts was reduced from ten to five years; Art. 42 was adopted in a new version—on the freedom of scientific and technical creativity; at the suggestion of deputy Khalimakhon Usmanova, ”Motherhood and childhood are under the protection of the state” was added to Art. 64 (now 65).

Based on the proposals of the chairman of the commission, Art. 26 (presumption of innocence), Art. 27 (secrecy of correspondence and telephone conversations) and Art. 31—freedom of conscience: ”The forced imposition of religious views is not permitted” were consolidated. The Arbitration Court was transformed into an Economic Court, and the parliament was named the Oliy Majlis. The commission rejected a bicameral structure, mandatory union membership, and the appointment of prosecutors with the consent of khokims (article by Sh. Buronov).

Justice of antiquity and the Middle Ages: from the ”Avesta” to the khanates

Already in the ”Avesta” — one of the ancient cultural and legal sources of the region — there were rules concerning judicial cases: the court determined guilt, the validity of the claim, and punishment. The Saka, Kangju, Huns, Sarmatians, Karluk and Turkic Khaganates had their own legal systems, often based on prejudices. According to Muslim law, crimes were classified from religious and ideological positions, and a single judge handled all criminal and family-inheritance cases. In the Bukhara and Khiva Khanates, the heads of the judicial authority were emirs and khans: they conducted public proceedings — mainly concerning non-payment of taxes, plunder of the treasury, and rebellions. Only the khan could pass a death sentence; the kush-begi, beks, qazi-kalon (supreme judge) and qazi-askar (military judge) had all rights ”except the right of life and death” (according to the article by G. Yusupdzhanova).

The judicial system of Turkestan in the Russian Empire (1865–1917)

After the conquest of Central Asia, the colonial authorities established a court according to the laws of the empire. The ”Temporary Provision” of 1865 defined the procedure for introducing Russian justice; the ”Draft Provision on the Organization

of the Judicial Branch" of 1867 (in three parts) introduced a two-tier imperial system; the "Provision on the Administration of the Turkestan Region" approved by the emperor on June 12, 1886, became the main legal document of the region. General courts and courts based on sharia operated in parallel; for the nomadic population, the courts of qadis and bays were preserved. The district judge combined the consideration of minor cases with preliminary investigation. The reforms of 1897–1899 created a judicial chamber — the highest instance with control functions; conciliatory judges (district, additional, honorary) could arrest for up to three days. The fourth stage (1898–1917) adapted the system to the Judicial Statutes of the empire (article by G. Yusupdzhanova).

Soviet criminal courts: 1917–1960

The December 1917 decree suspended district courts, the Tashkent judicial chamber, and military courts; people's courts, tribunals, and revolutionary tribunals appeared, punishing those unsympathetic to the Bolshevik ideology. Under pressure from public protests, the Soviets preserved the courts of qadis and bays: in 1922, the "Provision on the Court of Qadis of the Turkestan Republic" was adopted, and on August 1, 1922, the first systematic Code of Criminal Procedure came into force. The 1926 Code of Criminal Procedure established judicial control over detention and case dismissal (arts. 201, 202, 244); the 1929 Code simplified the procedure but allowed the court to draw up the indictment itself. Based on the "Fundamentals of Criminal Justice of the USSR" of 1958, a new Code of Criminal Procedure of the Uzbek SSR was approved on May 21, 1959, and introduced into practice on January 1, 1960 (article by G. Yusupdzhanova).

Law of 1938 on the Judicial System and Court Personnel of the Uzbek SSR (1937-1939)

On August 16, 1938, the second session of the Supreme Soviet of the USSR adopted the Law "On the Judicial System of the USSR, Union and Autonomous Republics" — 8 chapters and 80 articles based on the Constitution of the USSR of 1936. Courts were divided into all-Union (Supreme Court of the USSR, military tribunals, railway and water transport courts) and courts of the Union republics. People's judges were elected by citizens of the district for 3 years; regional and Supreme Courts — for 5 years. In the second half of 1939, in the Uzbek SSR, there were 226 people's courts, five regional courts, and the Surkhandarya District Court.

The personnel were weak: out of 225 people's judges, only 17 had higher education. In 1937-1939, 541 judges were dismissed, only 6 people's judges completed their full term — 2.6%. People's Commissar of Justice D. Turdiev recorded the collusion of judges with criminals, and people's courts were housed in unsuitable buildings — mosques and warehouses; for Judge Inoyatov, half of the decisions and most of the verdicts were overturned (article by D. Komolov).

The judicial system of the Uzbek SSR during the years of the Second World War (1941–1945)

On June 22, 1941, on the day of Germany's invasion, the regulations "On the State of War" and "On Military Tribunals" were adopted: the trial had to begin within 24 hours after the accused was brought to trial, the death sentence was announced after 72 hours, cassation was prohibited — the sentence was changed only in the supervisory procedure. In 1942, the Tashkent Railway and Water Transport Court was transformed into a military tribunal.

The decree of July 15, 1941 reduced staffing levels: judges' leaves were canceled, the network of people's courts was cut by 20% in rural areas and 25% in cities; in 1942,

28 people’s courts were closed. The personnel shortage was addressed through education: the Tashkent Law Institute, suspended in 1941, resumed operations in 1942, and in August 1943, four-month courses were opened in Tashkent and six-month courses in Samarkand. By the end of 1945, only 56 lawyers with higher education remained in the people’s courts (article by D. Komolov).

Four stages in the development of the legal system of independent Uzbekistan

N. P. Azizov identifies four stages. The first (1991–2000) — transitional period and formation of the foundations of national statehood: constitutional law of August 31, 1991 (17 articles), Constitution, new branches of law, 15 codes from 1994–2008. The second (2001–2009) — democratic renewal: bicameral parliament, abolition of the death penalty and transfer of arrest sanctions to the courts (2007), reclassification of 75% of serious crimes as less serious, and 20% fewer sentences by 2006 compared to 2000.

Third (2010–2016) — deepening of democratic reforms (about fifty laws). Fourth (since 2017) — Strategy of Actions: judicial reform — second priority; the Supreme Council of Judges and the unified Supreme Court were created, 71 economic courts, judges — first for 5, then for 10 years and for life; torture is prohibited. Sh. Mirziyoyev: ”Ensuring the genuine independence of the judiciary is our number one priority” (quoted from D. Komolov). In Lex.uz — 99,706 documents (article by N. P. Azizov).

2.2 2.2. Savollar — questions of articles and model answers

S1. When, by what body and in what context was the first Constitution of the Republic of Uzbekistan adopted?

Answer. The Constitution was adopted on December 8, 1992 by the eleventh session of the Supreme Council of the Republic of Uzbekistan. It legally formalized the formation of a new sovereign democratic state — the Republic of Uzbekistan — on the political world map and, according to the author of the article, was created as the fruit and product of state independence. At the session itself, deputies made about 80 amendments, additions, and clarifications. The first President I. A. Karimov, who chaired the Constitutional Commission, called the basic law ”a manifesto of our freedom and security” (article by Sh. Buronov).

S2. How was the Constitutional Commission formed and how did it work?

Answer. After the adoption of the Declaration of Independence (June 20, 1990), a session of the Supreme Council created a commission of 64 people chaired by I. A. Karimov; on July 2–3, 1992, the composition was updated to 71 members. The meeting of April 12, 1991, began direct work: a working group of 32 people and 6 small groups (50 researchers) were created for the sections of the draft project. Constitutions of the USA, Germany, France, Japan, Lithuania and other states, and draft constitutions of seven CIS republics were studied; of three alternative concepts, the concept of the President’s rule of law (article by Sh. Buronov) was adopted as the basis.

S3. What versions did the draft Constitution go through before publication?

Answer. The first version (October–November 1991) contained 158 articles in six sections; in the spring of 1992, the second was prepared—149 articles, then the third—137 articles. For nationwide discussion, a version of 127 articles was published. The project was initially prepared in Russian; in July–August 1992, at the

direction of the head of the working group Sh. Z. Orazayev, the text was translated into Uzbek. Each version was carefully studied and edited by the chairman of the commission (article by Sh. Buronov).

S4. How did the nationwide discussion of the draft Constitution proceed?

Answer. On September 5, 1992, the commission comprehensively discussed the project, and on September 26 it was published in the press. The discussion—from late September to early December 1992—took place in the press, on radio and television, in labor collectives and student auditoriums; more than 6,000 proposals and comments and more than a thousand letters were received. Corrections were made to 60 of the 127 articles, 4 articles were excluded. On November 21, 1992, the project was published a second time—a precedent of two-stage discussion was established. The author calls the Constitution a ”people’s law” (article by Sh. Buronov).

S5. What key norms were included in the Constitution as a result of the discussion?

Answer. At the chairman’s proposal, the following were included: Art. 26 — presumption of innocence; Art. 27 — secrecy of correspondence and telephone conversations; Art. 31 — freedom of conscience (”Everyone has the right to believe in any religion or not to believe in any. The forced imposition of religious views is not permitted”). The Arbitration Court was transformed into an Economic Court, and the parliament was named the Oliy Majlis. At the deputy Khalimakhon Usmonova’s proposal, ”Motherhood and childhood are under the protection of the state” was added to Art. 64 (now 65) (article by Sh. Buronov).

S6. What proposals were rejected during the preparation and adoption of the Constitution?

Answer. The commission rejected the proposal for a bicameral Oliy Majlis (Chamber of Representatives and Chamber of Nations) — the idea of bicameralism was only returned to later, during the second convocation. At the meeting on December 7, 1992, the norm on the suspension of the President’s party membership was excluded (draft Art. 90). Membership in trade unions was not supported (contrary to the voluntary nature of associations) and the appointment of prosecutors with the consent of khokims: the prosecutor’s office is built on the principle of unity of command, all prosecutors are appointed by the Prosecutor General (article by Sh. Buronov).

S7. How was justice administered in ancient times and in the Bukhara and Khiva Khanates?

Answer. Already in the ”Avesta” there are rules about judicial cases: the court determined the guilt of the perpetrator, the validity of the claim and the punishment. Among the Sakas, Kangyue, Huns, Sarmatians, Karluk and Turkic Khaganates, their own legal systems operated. According to Muslim law, a single judge handled all criminal and family-inheritance cases. In the khanates, the head of the judicial power was the emir and khan; only the khan could pass a death sentence, while the kush-begi, beks, qazi-kalon and qazi-askar had rights ”except the right to life and death” (article by G. Yusupdzhanova).

S8. What judicial system did the Russian Empire introduce in Turkestan?

Answer. The ”Temporary Provision” of 1865 defined the procedure for introducing imperial justice; the ”Draft Provision” of 1867 introduced a two-tier court system; the ”Provision on the Administration of the Turkestan Region”, approved by the emperor on June 12, 1886, became the main legal document. General courts and courts based on Sharia operated in parallel; for the nomadic population, the courts of qazis and biys were preserved. The district judge performed a dual function — he con-

sidered minor cases and conducted preliminary investigation. The reforms of 1897-1899 created a judicial chamber — the highest instance of the region (article by G. Yusupdzhanova).

S9. How did criminal courts change during the Soviet period (1917-1960)?

Answer. The December 1917 decree suspended district courts, the Tashkent judicial chamber and military courts; people's courts, tribunals and revolutionary tribunals appeared, punishing those unsympathetic to Bolshevism. In 1922, a document on the courts of qazis was adopted, and on August 1, 1922, the first systematicized Code of Criminal Procedure was introduced. The Code of Criminal Procedure of the Uzbek SSR of 1926 consolidated judicial control over preventive measures and termination of cases; the Code of Criminal Procedure of 1929 simplified the process but allowed the court to draw up an indictment. According to the "Fundamentals of Criminal Justice of the USSR" of 1958, a new Code of Criminal Procedure was approved on May 21, 1959, which came into force on January 1, 1960 (article by G. Yusupdzhanova).

S10. What did the Law "On the Judicial System" of August 16, 1938 establish?

Answer. The law consisted of 8 chapters and 80 articles and was developed on the basis of the Constitution of the USSR of 1936. The courts were divided into two groups: all-Union (Supreme Court of the USSR, military tribunals, railway and water transport courts) and courts of the union republics (people's, regional, Supreme Courts of the autonomous and union republic). People's judges were elected by citizens of the district for 3 years (a citizen from 23 years of age could be elected); regional and Supreme Courts — for 5 years. At the Supreme Court of the USSR, a Plenum operated, which met no less than once every two months (article by D. Komolov).

S11. What was the staffing situation of the courts of the Uzbek SSR on the eve of the war?

Answer. In the second half of 1939, 226 people's courts were operating in the Uzbek SSR (only one was closed—due to a shortage of specialists); of the 225 people's judges, 17 had higher education, and 46 were women. In 1937-1939, 541 judges were dismissed; only 6 people's judges served their full term (2.6%). There were five regional courts (Tashkent, Samarkand, Fergana, Khorezm, Bukhara) plus the Surkhandarya District Court with 68 judges. People's Commissar of Justice D. Turdiev recorded cases of collusion between judges and criminals; courts were housed in mosques and warehouses (article by D. Komolov).

S12. How did military tribunals work during the war?

Answer. According to the regulation of June 22, 1941, the trial was appointed within 24 hours after the accused was brought to trial, the death sentence was announced within 72 hours, and cassation appeals were prohibited—the verdict could only be changed in the supervisory procedure. Until 1943, tribunals consisted of three permanent members without people's assessors; their members were not elected but appointed by joint orders of the People's Commissariats of Justice and Defense. Cases were heard mainly behind closed doors. The execution could be postponed until the end of combat operations—the convicted "washed away their guilt with blood" at the front, some were then acquitted and awarded (article by D. Komolov).

S13. How did the war change courts of general jurisdiction and the training of legal personnel?

Answer. The decree of July 15, 1941 reduced staffing: judges' leaves were canceled, people's courts were cut by 20% in rural areas and 25% in cities; in 1942, 28 people's courts were closed in the republic. Mobilization affected 20–30% of judges in

some regions (in Fergana—8 out of 24 people's judges). The personnel shortage was addressed through courses: the Tashkent Law Institute resumed operations in 1942, in August 1943, four-month courses were opened in Tashkent and six-month courses in Samarkand; by January 1, 1944, 40 people's judges had completed internships. By the end of 1945, only 56 lawyers with higher education remained in people's courts (article by D. Komolov).

S14. What stages of the development of the legal system of independent Uzbekistan does N. P. Azizov identify?

Answer. Four stages: (1) 1991–2000 — transitional period and formation of the foundations of national statehood (Declaration of Independence, constitutional law of August 31, 1991 with 17 articles, Constitution; for 1994–2008 — 15 codes); (2) 2001–2009 — democratic renewal: bicameral parliament, abolition of the death penalty and transfer of arrest sanctions to courts (2007); (3) 2010–2016 — implementation of the Concept of Deepening Democratic Reforms (about fifty laws); (4) from 2017 — Action Strategy 2017–2021: Supreme Council of Judges, merger of the Supreme and Higher Economic Courts, 71 economic courts, prohibition of torture (article by N. P. Azizov).

S15. What mechanisms for involving citizens in lawmaking appeared in the fourth stage?

Answer. According to the President's Address of December 23, 2017, the "My Opinion" collective appeals portal was launched: 440 collective appeals were published. On the portal for discussing draft normative legal acts of the Ministry of Justice, about 8,000 acts were considered, including 557 bills and 2,380 draft government resolutions, with about 35,000 proposals submitted. For youth (under 18 years old — about 40% of the population, under 30 years old — 64%), a "Youth Parliament" was created under the Legislative Chamber; on June 29, 2020, an agreement was signed with the Central Council of the Youth Union. On February 27, 2020, a Parliamentary Commission for monitoring the Sustainable Development Goals until 2030 was established (article by N. P. Azizov).

2.3 2.3. Testlar — tests with correct answers

T1. When was the first Constitution of the Republic of Uzbekistan adopted?

a) August 31, 1991 b) June 20, 1990 c) December 8, 1992 d) November 21, 1992 Answer: c) December 8, 1992

Explanation: According to Sh. Buronov's article, the Constitution was adopted at the eleventh session of the Supreme Council on December 8, 1992; August 31, 1991 is the date of the law on the foundations of independence, June 20, 1990 is the Declaration of Independence, and November 21, 1992 is the republication of the draft.

T2. How many people initially joined the Constitutional Commission under the chairmanship of I. A. Karimov?

a) 32 b) 64 c) 71 d) 50 Answer: b) 64

Note: A commission of 64 people was established by the session that adopted the Declaration of Independence; on July 2–3, 1992, the composition was updated to 71 members; 32 — working group, 50 — researchers of small groups (article by Sh. Buronov).

T3. How many articles did the first draft of the Constitution, prepared for October–November 1991, contain?

a) 127 b) 137 c) 149 d) 158 Answer: d) 158

Note: The first version — 158 articles in six sections; then 149, 137 and 127 articles (version for public discussion) — article by Sh. Buronov.

T4. Who in the Bukhara and Khiva Khanates could pass a death sentence?

a) qazi-kalon b) only the khan (emir) c) kushbegi d) qazi-askar Answer: b) only the khan (emir)

Note: According to the article by G. Yusupdzhanova, the kushbegi, beks, qazi-kalon (supreme judge) and qazi-askar (military judge) had all rights ”except the right to life and death”; for the death penalty, the permission of the khan (emir) was required.

T5. When was the ”Regulation on the Administration of the Turkestan Region” — the main legal document of the region — approved by the emperor?

a) in 1865 b) in 1867 c) June 12, 1886 d) in 1897 Answer: c) June 12, 1886

Explanation: ”The Temporary Provision” refers to 1865, ”The Draft Provision on the Organization of the Judicial Part” refers to 1867, the third stage of reforms refers to 1897; the ”Provision” itself was approved on June 12, 1886 (according to G. Yusupdzhanova’s article).

T6. When was the Code of Criminal Procedure of the Uzbek SSR, approved on May 21, 1959, introduced into legal practice?

a) May 21, 1959 b) August 1, 1922 c) January 1, 1960 d) in 1958 Answer: c) January 1, 1960

Explanation: According to G. Yusupdzhanova’s article, the law approving the code was adopted on May 21, 1959, based on the ”Fundamentals of Criminal Justice of the USSR” of 1958, and the code was introduced into practice on January 1, 1960.

T7. How many chapters and articles did the Law ”On the Judicial System of the USSR, Union and Autonomous Republics” of 1938 contain?

a) 8 chapters and 80 articles b) 6 chapters and 64 articles c) 12 chapters and 100 articles d) 10 chapters and 58 articles Answer: a) 8 chapters and 80 articles

Explanation: The law, adopted on August 16, 1938, based on the Constitution of the USSR of 1936, consisted of 8 chapters and 80 articles (according to D. Komolov’s article).

T8. For what term was a people’s judge elected according to the 1938 law?

a) for 5 years b) for 3 years c) for 10 years d) for 2 years Answer: b) for 3 years

Explanation: According to Article 22 of the law (cited by D. Komolov), people’s judges are elected for 3 years, starting from age 23; five years is the term for regional and Supreme Courts; ten years is the term of office of the courts, reduced by the 1992 Constitution to five.

T9. How many people’s courts were operating in the Uzbek SSR in the second half of 1939?

a) 68 b) 225 c) 226 d) 28 Answer: c) 226

Explanation: According to D. Komolov’s article — 226 people’s courts (one closed due to lack of specialists); 225 is the number of people’s judges, 68 is the number of regional and district court judges, 28 is the number of courts reduced in 1942.

T10. Within what time after being brought to trial should the process begin in a military tribunal?

a) within 72 hours b) within 24 hours c) within five days d) within one month Answer: b) within 24 hours

Explanation: According to the regulation of June 22, 1941, the court was appointed

within 24 hours after the accused was brought to trial; the death sentence was announced within 72 hours (Article by D. Komolov).

T11. What period does the first stage of development of the legal system of independent Uzbekistan cover according to N. P. Azizov's classification?

a) 1991-2000 years b) 2001-2009 years c) 2010-2016 years d) 2017-2021 years Answer: a) 1991-2000 years

Explanation: According to N. P. Azizov's article, the first stage (1991–2000) is a transitional period and the formation of the foundations of national statehood; followed by 2001–2009, 2010–2016 and the stage starting from 2017.

T12. What changes occurred in 2007 at the second stage of legal development in Uzbekistan?

a) Oliy Majlis was transformed into a bicameral parliament b) the death penalty was abolished and the sanction for arrest was transferred to the courts c) The Supreme Court was merged with the Higher Economic Court d) the Strategy of Actions for 2017–2021 was adopted Answer: b) the death penalty was abolished and the sanction for arrest was transferred to the courts

Explanation: According to N. P. Azizov's article, in 2007 a law was adopted abolishing the death penalty and transferring the power to issue arrest warrants to the courts; the merger of the Supreme Courts and the Strategy of Actions are events of the fourth stage.

2.4 2.4. Atamalar — glossary of the week

Term (atama)	Meaning
Constitution (Konstitutsiya)	the fundamental law of the state; the Constitution of Uzbekistan of 1992 legally formalized the formation of a sovereign democratic state
Constitutional Commission	established in 1990 with 64 members under the chairmanship of I. A. Karimov; from July 2–3, 1992 — 71 members; working group — 32 people
Declaration of Independence	adopted on June 20, 1990 by the second session of the Supreme Council of the 12th convocation
Law "On the Foundations of State Independence"	constitutional law of August 31, 1991 consisting of 17 articles — the legal foundation of independence
Nationwide Discussion	discussion of the Constitution draft from September 26 to early December 1992; for the first time conducted in two stages (second publication — November 21, 1992)
Presumption of Innocence	principle enshrined in Art. 26 of the Constitution on the proposal of the chairman of the commission
"Avesta" (Avesta)	ancient cultural and legal source with rules on judicial cases: determination of guilt, validity of claim, and punishment
Kazi Kalon (Kazi Kalon)	supreme judge in the Bukhara and Khiva khanates
Kazi Askari (Kazi Askari)	military judge in the khanates
People's Court	lowest level of the judicial system; under the 1938 law, judges were elected for 3 years

Term (atama)	Meaning
Military Tribunal	special court of war time: proceedings within 24 hours, no appeal, until 1943 — three permanent members
People’s Assessors	participated in collegial consideration of cases; were summoned from a list for 10 days a year with salary retention
Judicial Chamber	highest judicial instance of Turkestan, created during the reforms of 1897–1899 (Tashkent Judicial Chamber)
CPC (Criminal Procedure Code)	first systematized CPC introduced on August 1, 1922; CPC of the Uzbek SSR of 1959 — from January 1, 1960
Oliy Majlis (Oliy Majlis)	name of the supreme representative body enshrined during work on the Constitution; since the 2000s — a bicameral parliament
Strategy of Actions 2017–2021	program of the fourth stage of legal development; judicial and legal reform — its second priority

3 3. Week 6 — Human Rights and Elimination of Forced Labor

Week 6 files: AbolitionOfForcedLabourCaseOfUzbek (O. Sultonov, J. Rasulov)· Bhat-FORCEDLABORCHILDREN-2013 (B. A. Bhat).

Week 6 answers the questions: what is forced labor according to ILO Conventions No. 29 and No. 105 and how Uzbekistan has implemented international standards; what institutional mechanisms to combat forced labor have been formed since 1992; why child labor became systemic in the cotton sector, what are its scale, conditions and consequences, and how the state and international community responded. Below are the key provisions, savollar, testlar and atamalar for the two articles of the week.

3.1 3.1. Key provisions (”all rules” of the week)

Forced labor: definition and ILO Conventions No. 29 and No. 105

According to ILO estimates (2017), 40.3 million people are in modern slavery: 24.9 million — in forced labor, 15.4 million — in forced marriage; every fourth victim is a child. Convention No. 29 (1930) defines: ”Forced or compulsory labour means all work or service which is exacted from any person under the threat of any penalty and to which he has not offered himself voluntarily.” The definition is based on four elements: work or service; any person; involuntary nature; threat of penalty. Art. 2 of the Convention excludes military service, ordinary civic obligations, work under court sentence, emergencies, and minor community works from the concept.

Convention No. 105 (1957) requires the immediate abolition of forced labor in five cases: as a means of political coercion or punishment for political opinions; as a method of labor mobilization for economic development; as a means of labor discipline; as punishment for participation in strikes; as a means of racial, social, national or religious discrimination.

Uzbekistan and international labor standards

As of January 1, 2021, Uzbekistan had ratified 17 ILO conventions (including 8 fundamental ones) and 1 protocol: conventions Nos. 29 and 105, the 2014 Protocol to Convention No. 29 (ratified on June 25, 2019, and entered into force for Uzbekistan

on September 16, 2020), convention No. 182 on the worst forms of child labor and No. 138 on the minimum age. The 1966 UN covenants on civil and political rights and on economic, social and cultural rights have also been ratified. The head of the delegation to the 103rd session of the International Labour Conference, T. Narbaeva, emphasized: ”Ratification of conventions is only 50 percent of the solution to the problem,” the rest is the implementation of norms and changing the mindset of farmers and employers (article by O. Sulyaimanov and J. Rasulov).

Prohibition of forced labor in national legislation

Article 37 of the Constitution prohibits forced labor, except for serving a sentence by court order and other cases provided for by law. Article 10 of the Labor Code allows for the direct application of ratified conventions; article 7 defines forced labor as ”the performance of work under the threat of any penalty (including as a means of maintaining labor discipline).” The authors note a defect: the element of voluntary non-offering of services has been excluded from the national definition, due to which coercion outside of labor relations may not fall under the norm. Responsibility is established by Art. 1482 of the Criminal Code and Art. 51 of the Administrative Code — but only for ”administrative coercion to labor”; it is proposed to extend it to any persons (article by O. Sulyaimanov and J. Rasulov).

Khoshar: voluntary labor and exceptions to the concept of forced labor

Uzbek legislation uses a single term ”forced labor” (majburiy mehnat). A special place is occupied by the institution of khoshar: the dictionary defines it as ”voluntary, selfless participation of the majority in completing a task.” The Resolution of the Cabinet of Ministers of May 10, 2018, No. 349 allows for the involvement in public works, including construction and agricultural, only on a voluntary basis and with the presence of the corresponding document of the President or resolution of the Cabinet of Ministers; greening and improvement works can be organized without strict permission. Coercion to khoshar under the threat of punishment is a direct sign of forced labor; the authors propose to enshrine in the law a legal definition of khoshar (article by O. Sulyaimanov and J. Rasulov).

Three periods of formation of institutional mechanisms

First period (1992–2007): Uzbekistan joined the ILO, ratified conventions Nos. 29 and 105, adopted the Labor Code and the Employment Law, created state labor inspections; no special structures existed yet. Second period (2008–2016): international organizations reported on the systematic use of forced and child labor; conventions Nos. 182 and 138 and the UN protocol on trafficking in persons were ratified, the Law ”On Combating Trafficking in Persons” and resolutions Nos. 207, 82, 132 were adopted; an interdepartmental commission and a Rehabilitation Center were created; in 2013 — the Coordinating Council on Child Labor.

Third period (since 2017): criminal liability for forced labor was established, special mechanisms were formed, cooperation with the ILO was resumed — a Parliamentary Commission (Senate resolution of October 4, 2017, No. SQ-231-III), a Republican interdepartmental commission (resolution of May 31, 2018, No. 407), a tripartite commission (resolution of July 3, 2019, No. 553), a National Commission and an Institute of the National Rapporteur (decree PF-5775 of July 30, 2019).

Three types of mechanisms and national monitoring

Today, three types of mechanisms are in operation: (1) collegial bodies — the National Commission on Combating Trafficking in Persons and Forced Labor, the Coordination

Council on Child Labor, the Republican Tripartite Commission on Social and Labor Issues; (2) labor authorities — state labor inspectorates (Resolution No. 1066 of December 31, 2018), authorized to initiate cases and transfer materials to court; (3) civil society institutions — trade unions and NGOs. In 2019, 259 cases of forced labor were identified, fines under Art. 51 of the Code of Administrative Offenses amounted to 772 million sum, of which 141 cases were in cotton harvesting. According to the National Commission, for the 2020 cotton campaign, 42 officials (including the khokim and his deputies) were held accountable; in another 6 cases, documents were submitted to court (article by O. Sulaimonova and J. Rasulova).

Third-party monitoring and ILO results

Since 2013, a practice of monitoring child and forced labor with the participation of ILO experts has been in effect (the ”Third-party Monitoring” project). According to the results of 2013, the ILO concluded that child labor in cotton harvesting was not used systematically, although cases of forced labor were recognized. Independent monitoring for 2014–2018 concluded: systematic use of child labor has been eliminated, and in 2019 this issue ”is no longer on the agenda.” The national monitoring of the 2019 cotton campaign was conducted for the first time with the participation of US trade unions and European trade union centers under the coordination of the International Trade Union Confederation (article by O. Sulaimonova and J. Rasulova).

Cotton monoculture: historical roots

B. A. Bhat shows: child labor was preceded by the history of cotton monoculture. By 1911-12, Turkestan already supplied 52% of the needs of the Russian textile industry, and by 1914–15 — 70%; cotton plantations between 1886 and 1900 grew from 41,000 to 92,888 dessiatines, and the railway that came to Tashkent in 1898 ”opened Central Asia to Russian capital.” Uzbekistan is the second largest producer and exporter of cotton in the world (over 800,000 tons annually), providing about 60% of Central Asia’s cotton: 3.5–3.7 million tons of raw material and 1–1.2 million tons of fiber per year. For irrigation of 1.47 million hectares under cotton, the regime almost destroyed the Aral Sea — once the fourth-largest lake in the world, which has retained only 15% of its former volume and lost 24 species of endemic fish (article by B. A. Bhat).

Child labor in cotton: scale and conditions

During the harvest, schools were closed for two to three months, and children from the age of seven were sent to the fields — first 15–16-year-olds, then 12–14-year-olds, and by the end of September even first-graders. According to EJF, in the Fergana Valley, about 200,000 children worked annually; according to UNICEF (2000), 22.6% of children aged 5–14 worked at least part-time. The workday lasted 10–12 hours (from 6:30–7:00 AM to 7:00–7:30 PM; home by 9:00–10:00 PM) in heat up to 45 °C, without shade or protection; children drank water from irrigation canals, lived in barracks without windows and doors. Payment was from $5 for five days to 15 cents; according to the NGO ”Tahlil” (2001), a kilogram of cotton cost from 1.5 to 1 cent, while on the world market it was $1.15. Over two years in the Samarkand region, the deaths of eight children were recorded (article by B. A. Bhat).

Causes, educational losses, and state response

According to the ILRF study ”We Live Subject to Their Orders” (2008), the roots of forced child labor are not poverty or tradition, but the nature of the state and control over rural society: a command economy with quotas and demechanization (machine harvesting fell from two-thirds to 10%) require coercion; the mobilization of children

through schools is organized by khokimiats. Two months of school closures mean a loss of over 20% of instructional time; for grades 5–9, losses accumulate to a full academic year. The state responded: in 2001, cotton harvesting was included in the list of worst forms of child labor; in March 2008, the parliament pledged to ratify conventions No. 182 and No. 138 (ratified in March 2008 and March 2009). The 2007 Law "On Guarantees of the Child's Right to Labor" permits work from age 16, from 15 with written parental consent, and from 14 light work outside of school (article by B. A. Bhat).

3.2 3.2. Questions — Article Questions and Model Answers

S1. How does ILO Convention No. 29 define forced labor?

Answer. "Forced or compulsory labor means all work or service which is exacted from any person under the threat of any penalty and to which he has not offered himself voluntarily." The definition rests on four elements: work or service; any person (adult or child, citizen or migrant); involuntary nature; threat of punishment, which may not be criminal — for example, loss of rights or privileges. Art. 2 of the Convention does not extend the concept to military service, ordinary civic obligations, work done under sentence of a court, emergencies, and minor communal works (article by O. Sulaimanova and J. Rasulov).

S2. In what five cases does Convention No. 105 require the immediate cessation of forced labor?

Answer. As a means of political coercion or education or as punishment for political opinions; as a method of mobilizing and using labor for economic development; as a means of ensuring labor discipline; as punishment for participation in strikes; as a means of racial, social, national or religious discrimination. Whereas Convention No. 29 prohibits forced labor in general (with exceptions), No. 105 requires its immediate cessation in these five cases (article by O. Sulaimanova and J. Rasulov).

S3. Which ILO conventions has Uzbekistan ratified?

Answer. As of January 1, 2021 — 17 conventions (including 8 fundamental ones) and 1 protocol: conventions No. 29 (1930) and No. 105 (1957) on forced labor, No. 182 (1999) on the worst forms of child labor, No. 138 (1973) on minimum age, and the 2014 Protocol to Convention No. 29 (ratified on June 25, 2019, entered into force for Uzbekistan on September 16, 2020). The 1966 UN Covenants have also been ratified. The first period of institutional development (1992–2007) began with joining the ILO and ratifying conventions No. 29 and No. 105 (article by O. Sulaimanova and J. Rasulov).

S4. Why is ratification of conventions "50 percent of the solution to the problem"?

Answer. This was stated by T. Narbaeva, who headed the Uzbekistan delegation at the 103rd session of the International Labour Conference: ratification is only half the battle; the rest is the implementation of international norms into national legislation, and most importantly, changing law enforcement practices and the mindset of the population, especially farmers and employers. The authors confirm: in the history of the ILO, there have been many cases when a state ratified a convention and considered its obligations fulfilled, while I supervisory bodies since the 1930s have emphasized the insufficiency of ratification alone (article by O. Sulaimanova and J. Rasulov).

S5. How does national legislation define forced labor and what are its shortcomings?

Answer. Art. 7 of the Labor Code (developing Art. 37 of the Constitution) prohibits ”the performance of work under the threat of any penalty (including as a means of maintaining labor discipline).” Shortcomings: the element of voluntary non-offering of services has been excluded from the definition; forced labor is limited to the sphere of labor law, whereas Convention No. 29 applies outside of labor relations as well; the phrase ”in other cases provided for by law” conflicts with the closed list of exceptions in the Convention. Art. 1482 of the Criminal Code and Art. 51 of the Administrative Code only punish ”administrative coercion” to labor (article by O. Sulaimanova and J. Rasulov).

S6. What is hashar and when is it not considered forced labor?

Answer. Hashar is ”voluntary, disinterested participation of the majority in carrying out a task” (dictionary definition). According to the Government’s resolution No. 349 of May 10, 2018, mandatory involvement in public works, including construction and agricultural, is allowed only on a voluntary basis and with the presence of a Presidential decree or a Government resolution; without strict permission, greening and improvement can be organized. The key factor is good will: coercion to hashar under the threat of punishment is forced labor. The authors propose to enshrine the definition of hashar in law (article by O. Sulaimanova and J. Rasulov).

S7. What three periods of formation of mechanisms against forced labor do the authors identify?

Answer. (1) 1992–2007 — ratification of conventions No. 29 and No. 105, joining the ILO, adoption of the Labor Code and the Employment Law, creation of labor inspections; no specialized structures yet. (2) 2008–2016 — international claims, national action plans, first anti-trafficking institutions: Law ”On Counteracting Trafficking in Persons”, resolutions No. 207, No. 82, No. 132, commissions, Rehabilitation Center, Coordination Council on Child Labor (2013). (3) Since 2017 — criminal liability, new mechanisms, resumption of cooperation with the ILO, positive conclusions from international organizations (article by O. Sulyaimanova and J. Rasulov).

S8. What bodies are combating forced labor today?

Answer. Three types of mechanisms: collegial — National Commission on Combating Trafficking in Persons and Forced Labor (decree PF-5775 of July 30, 2019), Coordination Council on Child Labor, Republican Trilateral Commission on Social and Labor Issues; labor — state labor inspections, authorized to initiate cases and transfer materials to courts; public — trade unions and NGOs participating in tripartite negotiations and monitoring. The institution of the national rapporteur annually reports to the President on the situation with forced labor (article by O. Sulyaimanova and J. Rasulov).

S9. What results did the 2019–2020 monitoring show?

Answer. In 2019, 259 cases of forced labor were identified (141 — in cotton harvesting), fines amounting to 772 million soms were imposed under Art. 51 of the Code of Administrative Offenses. For the 2020 cotton campaign, 42 officials, including heads of organizations, khokims and their deputies, were held administratively liable; in 6 cases, documents were transferred to court. Cluster and farm managers were also held liable: 61 cases of failure to conclude labor contracts, 34 — failure to provide working conditions, 13 — failure to fulfill obligations, 17 — untimely payment of wages (article by O. Sulyaimanova and J. Rasulov).

S10. What did the ILO’s third-party monitoring establish?

Answer. Since 2013, monitoring of child and forced labor with the participation of ILO experts and human rights defenders has been practiced. Result of 2013: child

labor in cotton harvesting does not have a systematic nature, although there are cases of forced labor. Independent monitoring of 2014–2018: systematic use of child labor has been eliminated; in 2019, the issue was no longer on the agenda, significant progress was noted in the fight against forced labor. In the 2019 national monitoring, US and European trade unions participated for the first time under the coordination of the International Confederation of Trade Unions (article by O. Sulyaimanova and J. Rasulov).

S11. Why did child labor become mass-scale in Uzbekistan's cotton industry?

Answer. B. A. Bhat links this to the command economy: state quotas push production above the market-determined level, lack of market incentives requires coercion, and demechanization (machine harvesting fell from two-thirds in Soviet times to 10%) increased the need for cheap labor. ILRF research (2008) showed that the reasons are not poverty or tradition, but the nature of the state and control over rural society: khokimiyats organize the mobilization of children through schools, passing down quotas down to the individual child. Without agrarian sector reform, the problem cannot be solved (article by B. A. Bhat).

S12. What were the scale and conditions of child labor in cotton?

Answer. According to EJF, about 200,000 children worked annually in the Fergana Valley; according to UNICEF (2000), 22.6% of children aged 5–14 worked at least part-time. Schools were closed for two to three months, children worked 10–12 hours a day in heat up to 45 °C, drank water from irrigation canals, lived in barracks without electricity, windows, or doors. Payment — from $5 for five days to 15 cents; according to the NGO "Tahlil" (2001), a kilogram of cotton cost from 1.5 to 1 cent, while on the world market it was $1.15. Over two years in the Samarkand region, the deaths of eight children were recorded (article by B. A. Bhat).

S13. How did child labor affect education?

Answer. The two-month closure of schools is effectively subtracted from learning: the net loss is over 20% of instructional time, and accumulated losses from grades 5 to 9 reach a full academic year. In the spring, children were additionally mobilized for weeding, thinning, and transplanting seedlings—classes were suspended for weeks. Parents and teachers acknowledge that education is suffering; rural children find themselves in an unequal position compared to urban children and are aware of the losses for their future prospects. Bhat calls for reliable data and methodologically sound monitoring tools (article by B. A. Bhat).

S14. How did the state and law respond to the problem of child labor?

Answer. As early as 2001, the ministries of education and labor included manual cotton picking in the list of the worst forms of child labor; the UN Committee on the Rights of the expressed "deep concern" over the involvement of schoolchildren in harvesting. In March 2008, the parliament pledged to ratify conventions No. 182 and No. 138 (ratified in March 2008 and March 2009), and in September 2008, a national action plan was adopted. The 2007 Law "On Guarantees of the Child's Right to Labor" permits employment from age 16, from age 15 with written parental consent, and from age 14 with light work outside of school; Art. 241 of the Labor Code prohibits work harmful to health and morality (article by B. A. Bhat).

3.3 3.3. Testlar — tests with correct answers

T1. In what year was ILO Convention No. 29 on Forced Labor adopted?

a) 1930 b) 1957 c) 1999 d) 2014 Answer: a) 1930

Explanation: Convention No. 29 (on Forced Labor) was adopted in 1930, No. 105 (on the Abolition of Forced Labor) in 1957, No. 182 in 1999, and the Protocol to Convention No. 29 in 2014 (article by O. Sulaimonov and J. Rasulov).

T2. Which convention requires the immediate abolition of forced labor as a means of labor discipline?

a) Convention No. 29 (1930) b) Convention No. 105 (1957) c) Convention No. 138 (1973) d) Convention No. 182 (1999) Answer: b) Convention No. 105 (1957)

Explanation: The five cases of immediate abolition of forced labor (political coercion, economic development, labor discipline, strikes, discrimination) are listed in Convention No. 105 of 1957 (article by O. Sulaimonov and J. Rasulov).

T3. How many people, according to ILO (2017), are in modern slavery worldwide?

a) 24.9 million b) 15.4 million c) 40.3 million d) 250 million Answer: c) 40.3 million

Explanation: 40.3 million is the total number of victims of modern slavery, of which 24.9 million are in forced labor and 15.4 million in forced marriages; 250 million is the number of working children worldwide according to EJF (articles by Sulaimonov-Rasulov and Bhat).

T4. When did the 2014 Protocol to Convention No. 29 enter into force for Uzbekistan?

a) June 25, 2019 b) July 30, 2019 c) January 1, 2021 d) September 16, 2020 Answer: d) September 16, 2020

Explanation: Uzbekistan ratified the Protocol on June 25, 2019, and it entered into force for the republic on September 16, 2020 (article by O. Sulaimonov and J. Rasulov).

T5. Which article of the Constitution of the Republic of Uzbekistan prohibits forced labor?

a) article 37 b) article 7 c) article 10 d) article 51 Answer: a) article 37

Explanation: Article 37 of the Constitution prohibits forced labor, except for serving a sentence by court order and other cases provided by law; articles 7 and 10 are norms of the Labor Code, article 51 is the Code of

Administrative Offenses (both articles are weekly).

T6. By what document was the National Commission for Combating Trafficking in Persons and Forced Labor created?

a) by the Cabinet of Ministers resolution No. 407 of May 31, 2018 b) by the Cabinet of Ministers resolution No. 553 of July 3, 2019 c) by the Presidential decree PF-5775 of July 30, 2019 d) by the Senate resolution SQ-231-III of October 4, 2017 Answer: c) by the Presidential decree PF-5775 of July 30, 2019

Explanation: Decree PF-5775 reorganized the republican interdepartmental commission into the National Commission and established the Institute of the National Rapporteur; No. 407, No. 553, and SQ-231-III establish other mechanisms (article by O. Sulaimonov and J. Rasulov).

T7. How many cases of forced labor were identified in Uzbekistan as a result of the 2019 monitoring?

a) 141 b) 259 c) 42 d) 535 Answer: b) 259

Explanation: In 2019, 259 cases were identified (141 of them during cotton harvesting), fines amounting to 772 million soums were imposed; 42 are officials held accountable for the 2020 campaign (article by O. Sulaimonov and J. Rasulov).

T8. What conclusion did the ILO's independent monitoring reach for 2014–2018?

a) child labor is used systematically b) systematic use of child labor has been eliminated c) forced labor has been completely eradicated d) child labor was not detected at all Answer: b) systematic use of child labor has been eliminated

Explanation: The 2014–2018 monitoring concluded that systematic use of child labor had been eliminated; by 2019, the issue was no longer on the agenda (article by O. Sulaimanov and J. Rasulov).

T9. How did the share of machine cotton harvesting change by the time of B. A. Bhat's research?

a) from two-thirds in Soviet times to 10% b) from half to a quarter c) from 10% to two-thirds d) practically unchanged Answer: a) from two-thirds in Soviet times to 10%

Explanation: According to B. A. Bhat's article, in Soviet times up to two-thirds of cotton was harvested by machine, but by the time of the research — only 10%; the rest of the cotton is picked manually, often by children.

T10. How many children, according to EJF, worked annually in the cotton-growing Fergana Valley?

a) about 20,000 b) about 200,000 c) about 2,000,000 d) about 45,000 Answer: b) about 200,000

Explanation: According to B. A. Bhat's article, EJF reports about 200,000 children in Fergana annually; according to UNICEF (2000), 22.6% of children aged 5–14 worked at least part-time.

T11. When did Uzbekistan ratify ILO conventions No. 182 and No. 138?

a) in March 2008 and March 2009 b) in 2001 and 2002 c) in 2013 and 2014 d) in 1992 and 1996 Answer: a) in March 2008 and March 2009

Explanation: According to B. A. Bhat's article, the parliament took on the obligation to ratify both conventions in March 2008; No. 182 was ratified in March 2008, No. 138 in March 2009.

T12. From what age, according to the Law "On Guarantees of Children's Rights to Labor" (2007), is employment permitted?

a) strictly from 18 years b) from 16 years; from 15 — with written parental consent; from 14 — light work outside of school c) from 14 years without restrictions d) from 12 years during school holidays Answer: b) from 16 years; from 15 — with written parental consent; from 14 — light work outside of school

Explanation: According to Article 20 of the law (quoted from B. A. Bhat), employment is permitted from 16 years; those who have reached 15 years — with written consent of parents or guardians; students from 14 years

- for light work that does not harm health and education.

3.4 3.4. Atamalar — glossary of the week

Term (atama)	Meaning
Forced/compulsory labour	all work or service which is exacted from any person under the menace of any penalty and for which the said person has not offered himself voluntarily (ILO Convention No. 29, Art. 2)
Convention No. 29 (1930)	ILO's fundamental convention on forced labor: definition and list of exceptions
Convention No. 105 (1957)	prohibits forced labor in five cases: political, economic development, discipline, strikes, discrimination
2014 Protocol	supplements Convention No. 29 with national policy and action plans; ratified by Uzbekistan on June 25, 2019
Convention No. 182 (1999)	on the worst forms of child labor; ratified by Uzbekistan in March 2008
Convention No. 138 (1973)	on minimum age for employment; ratified in March 2009
ILO	International Labour Organization; Uzbekistan has ratified 17 conventions (8 fundamental) and 1 protocol
Majburiy mehnat	Uzbek term used as a single concept of forced and compulsory labor
Hashar	"voluntary, selfless participation of the majority in completing a task"; conditions — resolution of the CM No. 349 of May 10, 2018
National Commission	commission on combating human trafficking and forced labor; established by decree PF-5775 of July 30, 2019
National Rapporteur	an institution that reports annually to the President on the situation with forced labor

Term (atama)	Meaning
Labour Inspection	an agency that identifies violations of labor rights; under resolution No. 1066 of December 31, 2018, has the right to transfer materials to court
Third-party monitoring	monitoring of child and forced labor by ILO experts and human rights defenders (since 2013)
Cotton monoculture	an economic structure inherited from the empire and the USSR; according to Bhat — the primary cause of forced child labor
Child labour	mass mobilization of schoolchildren for cotton harvesting; systematic use eliminated by 2019

4 5. Cheat sheet: key dates and numbers

Before the exam, review this chapter in its entirety: it contains all the dates and numbers for weeks 5–6; in parentheses, the source article is indicated.

4.1 5.1. Key Dates

Date	Event
1886–1900	Cotton plantations in Turkestan increased from 41,000 to 92,888 dessiatines (Bhat)
June 12, 1886	The Emperor approved the ”Regulation on the Administration of the Turkestan Region” — the main legal document of the region (Yusupjanova)
1897–1899	Third stage of judicial reforms: a judicial chamber was created — the highest authority in Turkestan (Yusupjanova)
1898–1917	Fourth stage of reforms: adaptation of the judicial system to the Judicial Statutes of the Russian Empire (Yusupjanova)
August 1, 1922	Introduction of the first systematic Criminal Procedure Code — completion of the first stage of judicial policy in Turkestan (Yusupjanova)
August 16, 1938	Law ”On the Judicial System of the USSR, Union and Autonomous Republics”: 8 chapters, 80 articles (Komolov)
June 22, 1941	German invasion; provisions ”On the State of War” and ”On Military Tribunals” were adopted (Komolov)
April 13, 1942	Decrees of the Presidium of the Supreme Soviet of the USSR on labor days for collective farm workers and mobilization of city dwellers for agricultural work (Komolov)
September 10, 1944	Congress of Judges of the Republic: combating theft, the role of courts in the 1944 cotton harvest (Komolov)
May 21, 1959 / January 1, 1960	Approval of the Criminal Procedure Code of the Uzbek SSR / its introduction into legal practice (Yusupjanova)
June 20, 1990	Declaration of independence; decision to create a Constitutional Commission of 64 people (Buronov; Azizov)
April 12, 1991	Meeting of the Constitutional Commission: beginning of direct work on the draft (Buronov)
August 31, 1991	Constitutional Law ”On the Foundations of State Independence” (17 articles) (Buronov; Azizov)
October–November 1991	First draft of the Constitution: 158 articles, six sections (Buronov)

Date	Event
July 2–3, 1992	Partial renewal of the composition of the Constitutional Commission — up to 71 members (Buronov)
September 26, 1992	Publication of the draft Constitution for nationwide discussion (Buronov)
November 21, 1992	Second publication of the draft: discussion in two stages (Buronov)
December 7–8, 1992	Last meeting of the commission; the eleventh session of the Supreme Council adopted the Constitution (Buronov)
1994–2008	Adoption of 15 codes — establishment of legal branches (Azizov)
2007	Abolition of the death penalty and transfer of arrest sanctions to courts (Azizov); Law ”On Guarantees of the Child’s Right to Work” (Bhat)
March 2008 / March 2009	Ratification of ILO Conventions No. 182 and No. 138 (Bhat)
May 10, 2018	Resolution of the CM No. 349 ”On Additional Measures to Eliminate Forced Labor” (Sulaimanov, Rasulov)

Date	Event
June 25, 2019 / September 16, 2020	Ratification of the 2014 Protocol / its entry into force for Uzbekistan (Sulaimanov, Rasulov)
July 30, 2019	Decree PF-5775: National Commission and Institute of the National Rapporteur (Sulaimanov, Rasulov)
$2014{-}2018 \to 2019$	ILO independent monitoring: systematic child labor eliminated; in 2019, the issue was removed from the agenda (Sulaimanov, Rasulov)

Key dates for weeks 5–6 (in parentheses — source article)

4.2 5.2. Key Numbers and Figures

- $6,000+$ proposals and $1,000+$ letters — nationwide discussion of the Constitution draft; 60 of 127 articles

were amended, 4 were excluded (Buronov)

- $158 \to 149 \to 137 \to 127$ — number of articles in successive versions of the Constitution draft (Buronov)

- $64 \to 71$ — composition of the Constitutional Commission; 32 people in the working group, 6 subgroups,

50 researchers (Buronov)

- about 80 — changes and clarifications made by deputies at the December 8, 1992 session (Buronov)

- 8 chapters and 80 articles — Law ”On the Judicial System” of 1938; people’s judges — for 3 years,

regional and Supreme Courts — for 5 years (Komolov)

- 226 people’s courts in the Uzbek SSR in the second half of 1939; out of 225 people’s judges, 46 were

women, only 17 had higher education (Komolov)

- 541 judges dismissed in 1937–1939; only 6 people’s judges completed their full term — 2.6% (Komolov)

- 28 people’s courts reduced in 1942; staffing of regional courts: $230(1941) \to 187(1942)$ (Komolov)

- 99,706 documents in Lex.uz, including 1,228 laws (6 constitutional, 18 codes) and 5,749 presidential

decrees (Azizov)

- 40.3 million people — modern slavery in the world: 24.9 million — forced labor, 15.4 million — forced

marriages; every fourth victim is a child (ILO, 2017)

- 17 ILO conventions (8 fundamental) $+ 1$ protocol ratified by Uzbekistan as of January 1, 2021

(Sulaimanov, Rasulov)

- 259 cases of forced labor in 2019 (141 — in cotton), fines amounting to 772 million sum; 42 officials held

accountable for the 2020 campaign (Sulaimanov, Rasulov)

4.3 5.3. Ten answers in one line

- When was the Constitution of Uzbekistan adopted? $\rightarrow On$ December 8, 1992, by the eleventh session of the

Supreme Council.

- How many members were in the Constitutional Commission initially? $\rightarrow 64$ (from July 2–3, 1992 — 71).

- What 1938 document defined the judicial system? $\rightarrow$ The Law ”On the Judicial System of the USSR,

Union and Autonomous Republics” of August 16, 1938 (8 chapters, 80 articles).

- How many people’s judges served a full term in 1937–1939? $\rightarrow$ only 6 — 2.6%.

- Four stages of the legal system of independence? $\rightarrow 1991-2000, 2001-2009, 2010-2016$, from 2017.

- What is forced labor according to Convention No. 29? $\rightarrow$ Any work or service which is exacted from any

person under the menace of any penalty and for which the said person has not offered himself voluntarily.

- When did the 2014 Protocol enter into force for Uzbekistan? $\rightarrow On$ September 16, 2020 (ratified on June

25, 2019).

- By what decree was the National Commission on Forced Labor created? $\rightarrow By$ decree of the President

PF-5775 of July 30, 2019.

- What was the outcome of the ILO monitoring for 2014–2018? → Systematic use of child labor was

eliminated; in 2019, the issue was removed from the agenda.

- How many children worked in cotton in the Fergana Valley according to EJF data? → about 200,000

annually.